

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the)
Interstate Transmission System) Docket No. RM26-4-000

**SUPPLEMENTAL COMMENTS
OF BUCKEYE POWER, INC.**

Pursuant to the Federal Energy Regulatory Commission’s (“FERC” or the “Commission”) October 27, 2025, Notice Inviting Comments¹ on the proposed advance notice of proposed rulemaking (“ANOPR”)² released by the Secretary of Energy addressing interconnection of large loads to the interstate transmission system, Buckeye Power, Inc. (“Buckeye”) submits these supplemental comments.

**I. INTRODUCTION AND SUMMARY OF BUCKEYE’S
SUPPLEMENTAL COMMENTS**

Buckeye appreciates the Commission’s Order on April 16, 2026 stating that it “will address the problems discussed in the ANOPR in a manner that is quick, efficient, and legally durable.”³ The ANOPR identifies numerous serious problems relating to the influx of large loads (primarily driven by the proliferation of data centers) and seeks solutions that will ensure all Americans receive reliable and affordable power while accommodating large loads. Buckeye agrees that “further action is warranted.”⁴

¹ Notice Inviting Comments (Oct. 27, 2025), eLibrary No. 20251027-3056. The Commission subsequently extended the reply comment deadline to December 5, 2025. Notice Granting Extension of Time (Nov. 7, 2025), eLibrary No. 20251107-3060.

² *Ensuring the Timely and Orderly Interconnection of Large Loads*, Advanced Notice of Proposed Rulemaking (Oct. 27, 2025), eLibrary No. 20251027-4001 (“ANOPR”).

³ Order Regarding Intent to Act, 195 FERC ¶ 61,045 (2026) (“Notice of Intent to Act”).

⁴ *Id.* P 3.

Specifically, Commission action is required to solve these problems in a manner consistent with its statutory obligation to ensure just, reasonable, and not unduly discriminatory transmission rates.

Buckeye submits these supplemental comments in response to supplemental comments filed by the National Association of Regulatory Utility Commissioners (“NARUC”)⁵ to make the following points.⁶

- Contrary to NARUC’s assertions, state action alone *cannot* protect all customers against transmission cost shifting caused by data centers. Federal action is necessary to protect *all* customers against transmission cost shifting. Without action by the Commission, wholesale transmission customers like Buckeye, and the retail customers of its members, could be left shouldering billions in transmission costs.
- Commission action can be structured to work with state action—not to impede or abrogate the states’ role. To best protect other customers, the Commission should require large loads to be responsible for 100% of the network upgrade costs they cause. To the extent the Commission does not directly assign these costs to large loads, it should assign those costs to the relevant wholesale entity with a retail relationship to the large load. That relevant wholesale entity would then be able to allocate these costs to individual retail customers (including the large load) through retail rates. This approach is consistent with the existing cooperative federalism framework of the Federal Power Act (“FPA”).
- The Commission must at minimum ensure that the results of any ratepayer protections implemented at the retail level are reflected in FERC-jurisdictional transmission rates. But relying on individual actions taken by some utilities and states is not sufficient to address the magnitude of the risk facing other customers.

Data centers have expressed a willingness to pay for their costs and hold other customers harmless. This cannot happen without federal action.

⁵ NARUC, Supplemental Comments re the Advanced Notice of Proposed Rulemaking (Apr. 13, 2026), eLibrary No. 20260413-5278 (“NARUC Letter”).

⁶ Buckeye’s comments in this docket reflect Buckeye’s experience in PJM Interconnection, L.L.C. (“PJM”) and the terminology referenced may not be applicable in other RTOs/ISOs or regions. However, while some of the terminology and details are particular to PJM, the issues identified apply broadly and are thus appropriate for a nationwide-rulemaking.

II. SUPPLEMENTAL COMMENTS

A. State only solutions will not protect all consumers.

NARUC asserts that “there is no regulatory gap with respect to state commissions’ ability to appropriately allocate transmission costs, including the costs of network upgrades, to large load end-use customers.”⁷ But NARUC’s letter fails to address the allocation of those costs to other wholesale transmission customers through FERC-jurisdictional rates, which is a problem only this Commission can address.

Retail regulators can address the relationship between the data center, the utility serving that data center at retail, and that utility’s other retail customers. But they lack authority to address the impact on *other* customers affected by data center-driven transmission costs. As discussed in detail in Buckeye’s previous comments on the ANOPR,⁸ other wholesale transmission customers (and ultimately the retail customers of these other wholesale transmission customers) pay FERC-jurisdictional transmission charges for the zone(s) that include the large load-caused network upgrade costs. Given the enormous costs of transmission facilities and upgrades needed to serve these large loads—billions of dollars in local transmission projects in PJM alone,⁹ with even more

⁷ NARUC Letter at 6.

⁸ Comments of Buckeye Power, Inc. (Nov. 21, 2025), eLibrary No. 20251121-5377 (“Buckeye Initial Comments”); Reply Comments of Buckeye Power, Inc. (Dec. 5, 2025), eLibrary No. 20251205-5179 (“Buckeye Reply Comments”).

⁹ Buckeye Initial Comments at 8 (“In 2024 alone, transmission owners in the PJM region proposed \$4.3 billion in local transmission projects, with \$2 billion coming from Virginia and \$1.3 billion coming from Ohio, two epicenters of data center development.” (citations omitted)). AEP Ohio expects to request an additional \$4.2 billion with the upcoming Piketon project; but while press releases indicate the data center will pay for these costs, without FERC action it’s unclear whether this commitment will be structured in a way that will only protect AEP Ohio’s customers. *AEP Ohio Partners to Bring \$4.2B in New Electric Infrastructure in Appalachian Ohio Without Raising Customer Rates*, AEP Ohio (Mar. 20, 2026), <https://www.aepohio.com/company/news/view?releaseID=10824>.

costs on the horizon¹⁰—the Commission must address the impact these costs have on FERC-jurisdictional rates to ensure *all* customers are protected against stranded transmission costs and cost-shifting from large loads.

However, the necessity of FERC’s role does *not* mean that the states must cede control over all retail rates or retail contracts with retail customers to FERC or that there is a binary choice between uniform federal rules and state retail solutions. Rather, dual and complementary solutions are needed.

i. Cost shifting from Large Loads can occur in various ways—both state and FERC solutions are needed

Although data centers are often connected directly to transmission level voltage and typically drive significant transmission (not distribution) investment, data centers are retail customers who pay retail rates subject to the jurisdiction of the Retail Electric

¹⁰ The transmission system enhancements developed to address baseline reliability criteria violations developed during recent PJM Competitive Planning Windows sums to \$24.003 billion. See details below:

- Baseline upgrades developed during an “Immediate Need” reliability evaluation (and approved by PJM in Oct. 2022) totaled \$652 million. See page 1 of the October 2022 TEAC Whitepaper available at <https://www.pjm.com/-/media/DotCom/committees-groups/committees/teac/2022/20221004/20221004-pjm-teac-board-whitepaper-october-2022.pdf>.
- Baseline upgrades developed during 2022 RTEP Window 3 (and approved by PJM in Dec. 2023) totaled \$5.143 billion. See page 1 of the December 2023 TEAC Whitepaper available at <https://www.pjm.com/-/media/DotCom/committees-groups/committees/teac/2023/20231205/20231205-pjm-teac-board-whitepaper-december-2023.pdf>.
- Baseline upgrades developed during 2023 Window 2 (and approved by PJM in Aug. 2024) totaled \$448 million. See page 1 of the August 2024 TEAC Whitepaper available at <https://www.pjm.com/-/media/DotCom/committees-groups/committees/teac/2024/20240806/20240806-pjm-board-whitepaper-august-2024.pdf>.
- Baseline upgrades developed during 2024 RTEP Window 1 (and approved by PJM in Feb. 2025) totaled \$5.920 billion. See page 1 of the February 2025 TEAC Whitepaper available at <https://www.pjm.com/-/media/DotCom/committees-groups/committees/teac/2025/20250204/20250204-pjm-board-whitepaper-february-2025.pdf>.
- Baseline upgrades developed during 2025 RTEP Window 1 (and approved by PJM in Feb. 2026) totaled \$11.840 billion. See page 1 of the February 2026 TEAC Whitepaper available at <https://www.pjm.com/-/media/DotCom/committees-groups/committees/teac/2026/20260203/20260203-pjm-board-whitepaper-february-2026.pdf>.

Regulatory Ratemaking Authority (“RERRA”), which may be a state commission, or in the case of cooperatives, can be the elected board of directors. The costs of transmission infrastructure built by the Transmission Owner (“TO”) to accommodate the data center are recovered through the TO’s transmission rates, which are regulated exclusively by FERC. These transmission rates are paid by all wholesale transmission customers in the applicable TO zone. In other words, it is not just the relevant wholesale transmission entity that pays the transmission rate that includes data center-driven transmission costs; those rates are also paid by Load Serving Entities (“LSEs”) that have no retail relationship with the data center.¹¹ As a result, data center loads can cause significant cost shifting to other customers—both at the retail and wholesale levels—particularly if the data centers do not have the sustained electricity usage that is expected.

1. *Cost Shifting Among Retail Customers:* Data centers can shift costs to the other retail customer classes of the LSE/electric distribution utility (“EDU”) serving that data center through retail rate structures governed by the RERRA. This cost-shift could be caused by the allocation of cost through distribution rates based on outdated cost-of-service studies or based on how the transmission costs paid by the LSE/EDU are allocated among the data center and that LSE/EDU’s other retail customer classes. These retail cost shifting risks present significant concerns that state commissions (or other RERRAs, as applicable) are uniquely positioned to address.

2. *Cost Shifting to Other Wholesale Transmission Customers in the TO’s Zone:* Data centers can also shift costs to other wholesale transmission customers¹² in that Zone. The costs of transmission upgrades¹³ to serve data center load are collected by the TO from its wholesale transmission customers through the FERC-jurisdictional transmission rate. The costs are allocated to the wholesale transmission customers based on their proportionate share of the TO’s coincident peak. As detailed in pages 8-13 of Buckeye’s Initial Comments in this proceeding (including the numerical example in Table 1), when a data center’s load is not sustained at the expected levels, the wholesale

¹¹ See Buckeye Initial Comments at 8-14 (explaining how other wholesale customers bear these costs and discussing the specific example of Buckeye bearing costs associated with data center load served by AEP Ohio through the multi-state AEP Zone of PJM).

¹² The wholesale transmission customer in PJM is typically the same as the LSE that serves the large load.

¹³ In PJM, these costs are referred to as supplemental projects that are considered through PJM’s Attachment M-3 process.

transmission customer that serves the data center will not see an increase in its coincident peak relative to the coincident peaks of other wholesale transmission customers. As result, the other wholesale transmission customers in that Zone can face enormous cost increases when the costs of transmission upgrades are allocated based on load ratio shares that do not reflect anticipated new data center load.¹⁴

As discussed below, while state commissions can and should address the cost shifting issues at the retail level discussed item 1 above, they cannot address the significant cost shifting issues within and across transmission zones addressed in item 2. FERC action is necessary to address these issues, as they can affect FERC-jurisdictional transmission rates.

ii. FERC action is necessary to address wholesale-level cost shifting.

FERC must have a role to address cost shifting among wholesale transmission customers within a TO's Zone and among various TO Zones. State commissions cannot address this issue because only the Commission has jurisdiction over transmission rates, such as those in PJM. Not only is Commission action needed, it is required. The Commission *must* address this issue to fulfill its statutory mandate to ensure just, reasonable, and not unduly discriminatory transmission rates.¹⁵

A clear example of why retail approaches on their own are insufficient and incomplete is Ohio Power Company's ("AEP Ohio") data center retail tariff recently approved by the Public Utilities Commission of Ohio ("PUCO") and cited by NARUC.¹⁶

¹⁴ Data centers can also shift costs to other LSEs within PJM through regional transmission projects, which are approved through RTEP and allocated to transmission zones throughout PJM based on distribution factor ("DFAX") methodology. PJM Open Access Transmission Tariff, Schedule 12. Those costs are then allocated to each LSE within the TO's Zone based on their proportionate share of the TO's coincident peak, similar to the cost allocation methodology discussed above. While these regional transmission projects are typically not attributable to a single load, these projects are likely driven by massive load increases caused by data centers.

¹⁵ 16 U.S.C. §§ 824d, 824e.

¹⁶ NARUC Letter at 3-4.

That retail tariff incorporates minimum demand charges, minimum contract terms, early termination fees, and credit support, but these measures are designed to protect only AEP Ohio's *own* retail customers from these significant stranded transmission cost risks.¹⁷

AEP Ohio has not filed any of the agreements entered into under this retail tariff with this Commission.¹⁸ Nor has AEP Ohio committed to reflecting payments it receives under its retail arrangements with data centers in its transmission revenue requirement for FERC-jurisdictional rates. Notwithstanding AEP Ohio's retail data center tariff, other wholesale customers like Buckeye could be left paying for rolled-in transmission assets built for AEP Ohio's retail data center load that fails to achieve and maintain the usage expected.

Indeed, while NARUC's letter states that AEP Ohio's retail tariff is intended to "prevent potential stranded asset costs from being passed to *other retail ratepayers*,"¹⁹ the AEP Ohio retail tariff protects only other *AEP Ohio* retail customers. It does not protect retail customers of other wholesale transmission customers, such as Buckeye. Concerns about "wholesale impacts that could materialize"²⁰ were raised before the PUCO. Although the Ohio Commission explicitly acknowledged concerns about cost shifts to other *wholesale transmission customers*, it declined to take any action to address them. Instead, it found that these issues "are statutorily outside of [the PUCO's] intrastate

¹⁷ See Buckeye Initial Comments at 14-16 (explaining how AEP Ohio's retail tariff's provisions "protect only AEP Ohio's own retail customers from these significant stranded transmission cost risks, leaving wholesale transmission customers exposed").

¹⁸ In contrast, other public utilities have filed their contracts with data centers with the Commission. *See id.* at 26-28 (citing examples of agreements that have been, or will have to be, filed with this Commission).

¹⁹ NARUC Letter at 3 (emphasis added).

²⁰ *In re Application of Ohio Power Co. for New Tariffs Related to Data Ctrs. & Mobile Data Ctrs.*, No. 24-508-EL-ATA, Order P 132 (Pub. Utils. Comm'n of Ohio July 9, 2025), <https://dis.puc.state.oh.us/ViewImage.aspx?CMID=A1001001A25G09B43531I00509> ("PUCO Order").

purview.”²¹ This case makes clear that state action alone cannot address these issues and FERC action is necessary.

Other states and public utilities have similarly recognized FERC’s essential role even when actions are taken at the retail level:

- The Illinois Commerce Commission (“ICC”) decision from March 2026, cited by NARUC (at 4-5), recognizes that a FERC role is necessary and approved a retail process that would incorporate FERC’s role to ensure appropriate cost shifting protections at the wholesale level. That ICC decision mandates that all large loads under the tariff execute a Transmission Security Agreement “designed to ensure the transmission revenue requirement is not shifted to other, non-[Large Load] ratepayers” and that such agreement be filed with and approved by FERC.²² The TSA is designed so that if there is a revenue shortfall below the expected load of the data center in any year, the delta will be credited to the transmission revenue requirement borne by transmission customers in the Commonwealth Edison (“ComEd”) transmission zone. ComEd noted that the use of the TSA, as approved by the ICC, was intended to “ensure that ComEd’s FERC-jurisdictional and Illinois-jurisdictional tariffs are in sync.”
- On March 13, 2026, PPL Electric Utilities Corporation (“PPL”) filed a settlement of its pending distribution rate case at the Pennsylvania Public Utilities Commission that included a large load interconnection tariff. The tariff included minimum demand charges, exit fees, and minimum contract duration, among other provisions. Importantly, the settlement recognizes the wholesale implications or large load risks and the role of FERC. It requires that the exit fee will first be used to offset the Company’s transmission rate base, with the remainder of the exit fee applied as a credit to the Company’s FERC Transmission Formula Rate revenue requirement.²³
- Dayton Power & Light d/b/a AES Ohio (“AES Ohio”) and PECO Energy Company (“PECO”) have also recognized that their arrangements with data centers should be filed with the Commission because of the impact on FERC-jurisdictional transmission rates. They have likewise recognized the

²¹ *Id.*

²² *Filing Proposing Revisions to Rider Distrib. Sys. Extensions*, No. 25-0679, Order at 109 (Ill. Com. Comm’n Mar. 19, 2026), <https://icc.illinois.gov/docket/P2025-0679/documents/377910>.

²³ *Pa. Pub. Utils. Comm’n v. PPL Elec. Utils. Corp.*, No. R-2025-3057164, Notice of Proposed Joint Petition for Approval of Non-Unanimous Settlement of All Issues, P 93 (Pa. Pub. Utils. Comm’n Mar 13, 2026), <https://www.pplelectric.com/-/media/ppl-jss-app/assets/Home/Landing-Pages/Public-Utility-Commission/PDFs/2026/PPL--2025-Rate-Case--Joint-Petition-for-NonUnanimous-Settlement-of-All-Issues-FINAL.pdf>.

need to reflect retail-level mechanisms in their FERC-jurisdictional rates.²⁴ AES Ohio and PECO specifically acknowledge that the failure to do so creates the “potential for double recovery of Network Upgrade costs.”²⁵

B. FERC action can be structured to work with state retail authority.

Buckeye supports the ANOPR’s proposal to hold large loads 100% responsible for the network upgrade costs they cause, which is the most protective and direct way to ensure that other customers are protected against the unique and significant risks posed by these large loads.²⁶ Given the substantial direct impact these large loads have on interstate transmission rates, this action would fall well within the Commission’s jurisdiction. This requirement would still maintain the state’s authority over local distribution, generation, and retail rate design. It would merely require that data centers are responsible for network upgrades costs they cause, given that these costs have a clear, direct, and significant impact on interstate transmission rates.²⁷

²⁴ Buckeye Initial Comments at 26-28.

²⁵ *Id.* at 26 n.33, 27 n.36.

²⁶ In addition, Buckeye supports also directly assigning to large loads 100% of the interconnection facilities and attachment facilities required to serve them.

²⁷ Buckeye also agrees with the Harvard Electricity Law Initiative’s comments that the Commission’s “and” pricing policy does not prevent the commonsense requirement that large loads like data centers, or the relevant wholesale transmission entity that serves them, pay (1) directly assigned network upgrades caused by the large load interconnection, and (2) the standard transmission rate (the NITS rate).

As Harvard Electricity Law Initiative highlights in reviewing the report filed with the supplemental comments submitted by WIRES, requiring the large load to pay either the incremental costs it causes through directly assignment *or* embedded costs through NITS—but not both—does not adequately protect other consumers. Given the unique scale, pace, and cost shift risks associated with large data center interconnections, Buckeye agrees with the Harvard Electricity Law Initiative that the Commission should make clear that any “and” pricing prohibitions do not apply to large loads like data centers. Large loads, primarily driven by data centers, present a distinct challenge to the electric grid and will require unique approaches. If the Commission decides to apply the “and” pricing prohibition in the context of large loads, it could still protect other consumers through an appropriate crediting mechanism specifically tailored to address large load concerns, as described in Buckeye’s prior comments. Buckeye Reply Comments at 6-9.

To the extent that the Commission does not hold large loads directly responsible for network upgrade costs, it can nevertheless take decisive action while still preserving clear boundaries between federal and state jurisdiction. As Buckeye explained in its Initial Comments, FERC could hold the relevant wholesale transmission entity with the direct relationship to the large load responsible for large load-driven network upgrade costs, as that entity would be in a position to pass these costs onto the large load under its retail arrangements.²⁸ This approach would ensure that other wholesale transmission customers are protected against cost shifting through FERC-jurisdictional transmission rates. And this approach would leave it to the states to determine how the transmission costs allocated to the relevant wholesale transmission entity are then allocated to individual retail customers through state-jurisdictional retail rates.

To implement this approach, Commission could make the relevant wholesale transmission entity either (i) pay upfront for transmission costs caused by data centers in their territory in accordance with ANOPR Principle 8, or (ii) be responsible for the data center's forecasted load even if the data center's actual usage is less than expected or goes away entirely, *i.e.*, a demand ratchet. This approach would provide the RERRA for the relevant wholesale transmission entity flexibility in determining the retail terms of service for large load customers and how to allocate costs among that relevant wholesale transmission entity's retail customers. But importantly, it would ensure that other wholesale transmission customers (and, in turn, their retail customers) are shielded against costs of facilities they did not cause.

²⁸ Buckeye Initial Comments at 22-25.

For instance, in the case of the AEP Ohio retail data center tariff approved by the PUCO, FERC could require the TO (AEP Transmission) to hold the LSE serving the large load (AEP Ohio) responsible for network upgrades it caused through FERC-jurisdictional rates (through direct assignment to the LSE or requiring the LSE to be responsible for some percentage of the forecasted large load). AEP Ohio's retail data center tariff would then govern how those costs are allocated among all of AEP Ohio's retail customers—just as other transmission costs are first allocated through FERC-jurisdictional rates and then allocated to end-use consumers through retail rates.

C. Allowing data center cost allocation issues to be addressed in an ad hoc manner creates problems and would still require Commission action.

NARUC points to the actions that some—*but not all*—states are taking to address data center-related cost issues at the retail level, which are insufficient for the reasons described above. At an absolute minimum, the Commission must ensure that such retail-level protections against the risks of stranded transmission costs resulting from large loads are reflected and accounted for in FERC-jurisdictional rates.²⁹ Doing so will provide at least some assurances that other wholesale transmission customers will not bear the costs caused by large load interconnections.³⁰ But it would not provide consistent protection for wholesale transmission customers, and it would require the Commission to act on a case-by-case basis to ensure just, reasonable, and not unduly discriminatory transmission rates.

²⁹ See *id.* at 25-29.

³⁰ For the example of AEP Ohio discussed above, this ad hoc approach would require AEP Transmission to reflect in its FERC-jurisdictional transmission rates the minimum demand charges, exit fees, minimum contract terms, and other charges collected under its retail arrangements.

Allowing utilities to address data center stranded cost issues through bilateral agreements or retail tariffs is problematic and an inferior solution compared to those discussed above in Part II.B. While Buckeye has supported filings at FERC of ad-hoc bilateral agreements between data centers and utilities because they at least attempt to protect other transmission customers,³¹ it is difficult to ensure these filings are structured to fully protect customers.

First, although the FPA requires all rates, practices, and contracts affecting FERC-jurisdictional rates to be filed with this Commission,³² the Commission has not provided a clear directive that public utilities must file their agreements with data centers at FERC and ensure that the protections thereunder are reflected in FERC-jurisdictional transmission rates. Some utilities have filed these agreements with the Commission (as they should, given the clear impact on FERC-jurisdictional transmission rates); others, like AEP Ohio, have not. The failure of AEP Ohio and other TOs to make such filings with this Commission leaves many wholesale transmission customers like Buckeye completely unprotected from data center cost shifting.

Second, even if all public utilities are required to make filings to reflect protections in the retail-level arrangements in FERC-jurisdictional transmission rates, the degree of protection can vary state-by-state or even contract-by contract. There would be

³¹ See Motion for Leave to File Comments Out-of-Time and Limited Comments of Buckeye Power, Inc., *Dayton Power & Light Co.*, Docket No. ER25-192 (Nov. 21, 2024), eLibrary No. 20241121-5196; Comments of Buckeye Power, Inc., *Dayton Power & Light Co.*, Docket No. ER25-2427 (June 25, 2025), eLibrary No. 20250625-5077; Limited Comments of Buckeye Power, Inc., *Dayton Power & Light Co.*, Docket No. ER26-1463 (Mar. 13, 2026), 20260313-5222 (“March 13 Comments”).

³² 16 U.S.C. § 824d(c) (“[E]very public utility shall file with the Commission. . . schedules showing all rates and charges for any transmission or sale subject to the jurisdiction of the Commission, and the classifications, practices, and regulations affecting such rates and charges, together with all contracts which in any manner affect or relate to such rates, charges, classifications, and services.”).

no base level of protection required for FERC-jurisdictional transmission rates. Moreover, the *Mobile-Sierra* presumption of reasonableness under which the Commission has so far reviewed the few agreements submitted to it may not be adequate. Unlike in the context of bilateral agreements to which the *Mobile-Sierra* presumption is typically applied, there is no reason to assume that an agreement negotiated between one utility and a data center will sufficiently protect other customers from the agreement's significant impact on transmission rates.

Finally, individual agreements may not address all risks posed by large loads, such as the costs of regional transmission upgrades driven by these large loads. For instance, in the AES Ohio/Amazon Construction Service Agreement recently accepted by the Commission, the agreement does not address regional costs that are driven by the large load, either individually or when aggregated with other data center loads, that would be approved through PJM's Regional Transmission Enhancement Plan ("RTEP").³³ Data centers have likely caused over \$24 billion in RTEP projects so far.³⁴ As a result, relying on individual agreements negotiated by the data center and interconnecting utility may not ensure the data centers pay for the full costs they cause.³⁵

³³ See March 13 Comments at 8 n.21 (explaining that this particular agreement "does not address regional costs that are driven by this large load, either individually or when aggregated with other data center loads and would be approved through PJM's transmission enhancement process.").

³⁴ See *supra* n.10.

³⁵ An approach similar to the approach SPP is currently exploring with stakeholder (Grid-LL) may be needed in PJM to ensure data centers' commitment to pay for the costs they cause is realized. See Consolidated Planning Process Task Force, *Large Load Cost Allocation Options*, SPP (Mar. 10, 2026), <https://www.spp.org/Documents/76120/CPPTF%20Meeting%20Materials%202026-03-10%20post%20meeting.zip> (select "6.c. Large Load Cost Allocation Options March 10.pptx" within the downloaded zip folder). This approach may entail requiring LSEs (on behalf of their large loads, and who will presumably pass the costs on to their large loads) to make early financial commitments to support regional portfolios, or a supplemental charge to LSEs with large loads that the LSE can then pass on to its large loads, or some combination of these options.

III. CONCLUSION

In order to make good on pledges from data centers themselves and from various government officials to hold data centers harmless from the transmission costs they cause, a federal role is needed because states acting alone can only protect against cost shifting among the one relevant wholesale transmission entity and its retail customers. FERC must act and provide a clear directive to TOs and RTOs to protect the other wholesale customers and their retail customers against transmission cost shifting, whether this be through a rule, show cause order, policy statement, or other Commission action. Continued Commission review of individual, ad hoc section 205 filings is insufficient, as it does not ensure that all customers will be protected adequately or in a consistent manner. Buckeye appreciates the Commission's recognition that a federal role is needed and the Commission's statement that it intends to act to protect all customers from potential stranded transmission costs.

Buckeye requests that the Commission give full consideration to Buckeye's Initial Comments, Reply Comments, and these supplemental comments in connection with its advance notice of proposed rulemaking addressing large load interconnections.

Respectfully submitted,

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